

Applicable Law Acts

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User Query :

My personal email account was accessed without my permission after I clicked a suspicious link. The person downloaded private documents, changed my password and later shared some confidential files with other people. I was locked out of the account until I recovered it. What legal provisions may apply to the unauthorized access and disclosure of my information?

Job Id. : qwen3-30b/Scenario 11/Combined Act

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 43

— Penalty and compensation for damage to computer, computer system, etc.

The email account was accessed without permission, data was downloaded and the password was changed.

Section 66

— Computer related offences

Applies if those **section 43** acts were done dishonestly or fraudulently.

Section 66C

— Punishment for identity theft

Relevant if the attacker fraudulently/dishonestly used the victim's password or another protected unique identification feature.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- Sections 43 and 66 are the core provisions for unauthorised access and related acts. **Section 66C** may be added if stolen credentials were actually used. A generic confidentiality/disclosure provision should not be substituted for the hacking elements.

✓ STRENGTHS & RIGHTS

- The facts expressly include unauthorised access, downloading and password modification.

✗ RISKS & OBLIGATIONS

- Do not add a lawful-contract disclosure offence merely because confidential files were later shared by the hacker.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve login alerts, recovery emails, headers, access logs and copies of disclosed files.

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 No additional BNS offence is necessary from the stated facts beyond the specialised IT Act computer offences; a separate BNS theory would require further conduct such as cheating, extortion or forgery.

✓ STRENGTHS & RIGHTS

- 1 Keeps the answer high precision.

✗ RISKS & OBLIGATIONS

- 1 Do not duplicate cyber-access liability with invented BNS sections.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Use the BNS branch only if additional facts support a substantive BNS offence.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Email/login records and disclosed files are electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant if the records are used in court.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- BSA governs proof of the email/account records, not the hacking offence.

✓ STRENGTHS & RIGHTS

- 1
- Provider login records and original account data can corroborate unauthorised access.

✗ RISKS & OBLIGATIONS

- 1
- Screenshots alone are weaker than provider/device records.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Preserve original records and provider logs where available.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The attacker is described as an unauthorised individual, not a Data Fiduciary/processor. The facts do not establish a DPDP-regulated service-provider breach.

✓ STRENGTHS & RIGHTS

- 1 Avoids treating every theft of personal files as a DPDP breach by a Data Fiduciary.

✗ RISKS & OBLIGATIONS

- 1 If the email provider itself suffered a personal-data breach or mishandled data, additional DPDP analysis could be relevant.

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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